

Law School Case Briefs

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Contracts
1464-Eight, Ltd v. Joppich
154 S.W.3d 101 (2004)

Keyword Subject

Breach of Contract, Consideration

Facts

The two parties entered an option contract in which Plaintiff (1464) sold Defendant (Joppich) a piece of land with the option for Plaintiff to purchase the property back at 90% the price if Defendant failed to build a residential property on the land within 18 months. The contract stated that consideration for the option was a \$10 fee to be paid by Plaintiff to Defendant. However, that fee had never been paid (as is at least somewhat common). When, after 18 months, Defendant had failed to build a property, Plaintiff tried to exercise this option Defendant refused citing the failure to pay the consideration fee.

Procedural History

Defendant requests Declaratory Judgement against Plaintiff (Failed)
Plaintiff files counter-claim
Trial Court: In favor of Plaintiff
Appeals: In favor of Defendant
Supreme: In favor of Plaintiff (Reversed and remanded)

Issue

Should the Second Restatements input on considerations be adopted in Texas?
Does false recital constitute a valid consideration for an option contract?

Holding: No and Yes; Reversed and Remanded

Principle

False recital does constitute consideration for an otherwise valid and enforceable contract.

Reasoning

Separate Opinions

Chief Justice Jefferson: Concurring; The idea that false recital is enough to constitute consideration should indicate that consideration might be a thing of the past. If not including a clause in the contract

Notes

Contracts
Beard Implement Co v. Krusa
208 Ill. App. 3d 953, 567 N.E.2d 345 (1991)

Keyword Subject

Breach of Contract

Facts

Defendant (Krusa) owned a farm with various pieces of farm equipment. Defendant's combine broke down and he proceeded to buy a new one. Defendant went to plaintiff (Beard Implement Co) to purchase a new combine and, after some negotiations, signed an order sheet to purchase the new combine for \$52,800 and the value of the defendant's current combine. The defendant had some misgivings, and left the plaintiff with the order sheet (not yet signed by plaintiff) and a check for a 10% downpayment (not yet dated by defendant). After a couple of days, defendant found another dealer who offered a different combine for a lower price. He accepted, believing that since the check hadn't been dated and the contract hadn't been signed by plaintiff he was under no obligations. Plaintiff disagreed and sued for breach of contract.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Defendant (Reversed)

Issue

In order for a contract to be enforceable, do all subsequent steps laid out in the contract need to be fulfilled?

Holding: Yes; Reversed

Principle

Reasoning

No contract ever existed between defendant and plaintiff because plaintiff never accepted defendant's offer to purchase the combine because the purchase order defendant signed required a "dealer" signature on behalf of plaintiff which was not filled out.

Separate Opinions

Notes

Torts
Big Town Nursing Home, Inc v. Newman
461 S.W.2d 195 (1970)

Keyword Subject

False Imprisonment

Facts

Plaintiff (Newman) was an elderly man who was consigned to defendant (Big Town Nursing Home). In the admission papers, the nursing home indicated that he would not be forced to stay there against his will. However, when plaintiff attempted to leave, he was forbidden from doing so. After several more attempts in which he was forcibly brought back, the defendant began strapping plaintiff into a chair, locking up his clothes, and did not provide him access to a doctor. After 51 days, plaintiff was able to escape and make it to Dallas. He had lost 30 lbs in the days in which he was retained

Procedural History

Trial Court: In favor of plaintiff

Appeal: In favor of plaintiff

Issue

Holding:

Principle

False imprisonment is the direct restraint of one person of the physical liberty of another without adequate legal justification

Reasoning

Defendant acted in the utter disregard of plaintiff's legal rights, knowing there was no court order for commitment, and that the admission agreement provided he was not to be kept against his will

Separate Opinions

Notes

Torts
Brown v. Kendall
60 Mass. (6 Cush.) 292 (1850)

Keyword Subject

Negligence, Trespass (common law)

Facts

The plaintiff and defendant's dogs were fighting and, in order to break up the fight, the defendant picked up a stick to hit the dogs to separate them. While raising the stick, the defendant struck the plaintiff, who was standing behind him, in the eye.

The defendant was acting lawfully, and there was no indication of unlawful intent

Procedural History

Jury Trial: In favor of Plaintiff

Appeal: In favor of Defendant (New Trial Ordered)

Issue

Does the defendant hold the burden of proof when an unintended consequence results from a lawful act without unlawful intentions?

Holding: No; New Trial Ordered

Principle

The plaintiff holds the burden of proving that a defendant acted either unlawfully or carelessly

Reasoning

If an act is lawful and a purely accidental injury arises, the actor cannot be held liable

Separate Opinions

Notes

Torts
Cohen v. Petty
62 App.D.C. 187, 65 F.2d 820 (1933)

Keyword Subject

Negligence, Car, Reasonable Care

Facts

The plaintiff was riding in a car driven by the defendant, when the defendant was suddenly stricken by an illness that resulted in them passing out behind the wheel.

The defendant testified that he knew himself to be in good health and had never fainted before.

The defendant wasn't driving recklessly and he did not feel ill until moments before he passed out.

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Defendant

Issue

Can a defendant struck with a sudden and unexpected illness that results in damages to a plaintiff be held liable?

Holding: No; Previous Ruling Affirmed

Principle

Unexpected and accidental "acts of god" cannot be used to hold someone liable for negligence

Reasoning

There was no evidence presented that would indicate that any reasonable level of care could have prevented the events from happening, therefore it is unreasonable to hold the defendant liable for negligence

Separate Opinions

Notes

Contracts
Commerce & Industry Insurance Co v. Bayer Corp

433 Mass. 388, 742 N.E.2d 567 (2001)

Keyword Subject

Agreement, Arbitration

Facts

Defendant (Bayer Corp) sold nylon "tow" (bulk fiber) to Malden Mills (a textile manufacturer). In December of 1995, a fire and subsequent explosion destroyed several Malden Mill's buildings and insurance began filing suits against multiple of the suppliers, including Defendant. Defendant had sold the tow to Malden Mills via a telephone order followed by a standard form purchase order. On the reverse side of the purchase order, the terms and conditions stated "Any controversy arising out of or related to this contract shall be settled by arbitration... This purchase order represents the entire agreement between both parties, notwithstanding any Seller's order form, whether sent before or after the sending of this purchase order, and this document cannot be modified except in writing and signed by an authorized representative of the buyer"

Procedural History

Trial Court: Defendant seeks motion to compel

Appeals: Motion to compel denied

Supreme: Affirmed (Remanded to lower court)

Issue

Holding:

Principle

Reasoning

Separate Opinions

Notes

Contracts
Continental Laboratories v. Scott Paper Co
759 F. Supp. 538, aff'd, 938 F.2d 184 (8th Cir. 1991) (1990)

Keyword Subject

Breach of Contract

Facts

The defendant (Scott Paper Co) were looking to enter a contract with plaintiff (Continental Laboratories) in which plaintiff would provide hotel amenity products for defendant. After extensive verbal negotiations, the parties reached an agreement on terms. Plaintiff took this to be a binding verbal agreement, while defendant contended that any contract would need to be written before it would be finalized. Therefore, when plaintiff pulled out of the deal before the written contract was finalized, defendant sued them for breach of contract.

Procedural History

Trial Court: In favor of defendant

Appeal: In favor of defendant

Issue

Is a verbal agreement binding if one party believes that it will not be binding until it is written and signed and acts accordingly?

Holding: No; Affirmed

Principle

If one of the parties understands the agreement to not be finalized until it is written and signed, then a basic verbal agreement is not binding.

Reasoning

In ascertaining whether the parties intended to be bound prior to execution of a written document, the court should consider the following factors:

1. whether the contract is of a class usually found to be in writing;
2. whether it is of a type needing a formal writing for its full expression;
3. whether it has few or many details;
4. whether the amount is large or small;
5. whether the contract is common or unusual;
6. whether all details have been agreed upon or some remain unresolved; and
7. whether negotiations show a writing was discussed or contemplated

Separate Opinions

Notes

Contracts
Day v. Caton
199 Mass. 513 (1876)

Keyword Subject

Breach of Contract, Implied Contract, Silence as Acceptance

Facts

Plaintiff and Defendant each owned equitable interests in adjoining properties. Plaintiff alleges they they build a brick wall, half of which was on Defendant's vacant lot, with the express understanding that if defendant used it in building on their lot they would remunerate plaintiff for the cost. Defendant used the wall in building on their lot, then denied that such an agreement had ever been formally made.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Plaintiff (Exceptions overruled)

Issue

Can a promise be inferred from the fact that an offerer undertakes and completes the terms of an agreement and the offeree, knowing this completion is done with the expectation that the promise be fulfilled, does not stop them?

Holding: Yes; Objections overruled

Principle

The circumstances of each case would necessarily determine whether silence, with a knowledge that another was doing valuable work for his benefit and with the expectation of payment, indicated that consent which would give rise to the inference of a contract.

Reasoning

Separate Opinions

Notes

Contracts
Dickinson v. Dodds
2 Ch. Div 463 (1876)

Keyword Subject

Revocation

Facts

Plaintiff was attempting to purchase a property from Defendant for £800. Defendant made an offer subject to acceptance at a specific time. Plaintiff thought on the offer for several days, then decided he wanted to go through. He left a letter of acceptance with defendant's mother-in-law, but it never reached Defendant. Plaintiff also sent an agent to meet Defendant, but the agent returned to Plaintiff and informed him that between the time that the offer was extended and the Plaintiff attempted to accept, Defendant sold the property to another party. Plaintiff sued for breach of contract for unilaterally revoking the offer.

Procedural History

Trial Court: In favor of Plaintiff (Specific Performance)

Appeal: In favor of Defendant

Issue

Holding:

Principle

Two minds must be in agreement at one point, the point of agreement

Reasoning

Separate Opinions

Notes

Torts
Dougherty v. Stepp
18 N.C. 371 (1835)

Keyword Subject

Trespass to Land

Facts

Plaintiff owned a piece of land that Defendant tried to survey. Defendant entered the land with a surveyor and chain carriers and tried to claim it as his own

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Plaintiff (Reversed and Remanded)

Issue

Can a tort for Trespass to Land hold if there was no damage done beyond the "treading down [of] the grass?"

Holding: Yes; Reversed and Remanded**Principle****Reasoning****Separate Opinions****Notes**

Civil Procedure
**Encompass Insurance Co v. Stone Mansion
Restaurant, Inc**
902 F.3d 147 (3rd Cir. 2018)

Keyword Subject

Diversity Jurisdiction, Forum State Exception

Facts

A young man and his cousin were attending an event at a restaurant. During the course of the e

Procedural History

Issue

Holding:

Principle

Reasoning

Separate Opinions

Notes

Torts
Enright v. Groves
39 Colo.App. 39, 560 P.2d 851 (1977)

Keyword Subject

False Imprisonment

Facts

The Plaintiff (Enright) lived in a town with a "dog leash" ordinance where Defendant (Groves) was a police officer. Plaintiff's dog was found to be off its leash and defendant found out. Defendant demanded plaintiff's drivers license, to which plaintiff refused. Defendant demanded it once more, informing Plaintiff that if it wasn't produced she would be going to jail. After Plaintiff refused again, Defendant arrested her.

Procedural History

Trial Court: In favor of Plaintiff (\$500 Actual, \$1000 Exemplary)

Appeal: In favor of Plaintiff

Issue

Is it false imprisonment if the police arrest someone for a violation which the officer does not have probable cause to pursue?

Holding: No; Ruling Affirmed

Principle

The defense based on arrest for and conviction of a specific offense is invalid if the arresting "offense" is beyond of the scope of the original offense?

Reasoning

Separate Opinions

Notes

The elements of false arrest are...

- a willful detention of a person
- against the consent of the person
- without the authority of the law

Torts
Fisher v. Carrousel Moter Hotel, Inc
424 S.W.2d 627 (1967)

Keyword Subject

Battery, Race

Facts

The plaintiff (Fisher) was a NASA mathematician attending a professional conference at defendant's (Carrousel Moter Hotel, Inc) that included a buffet luncheon.

While waiting in line with a plate to get said food, an employee of the defendant approached the plaintiff and grabbed the plate from his hand saying that a "Negro could not be served in the club."

Though the plaintiff was not actually touched, and was in not afraid for his wellbeing, he was embarrassed and hurt by the conduct.

Procedural History

Trial Court (Jury): In favor of the plaintiff (\$400 in damages and \$500 in punitive damage)

Trial Court (Judge): Overruled in favor of the defendant

Appeal: Affirmed in favor of defendant

Supreme Court: In favor of plaintiff (Reversed; original \$900 rendered)

Issue

Does a battery necessarily require physical contact?

Holding: No; Reversed

Principle

To constitute an assault and battery, it is not necessary to touch the plaintiff's body or even his clothing; knocking or snatching anything from plaintiff's hand or touching anything connected with his person, when done in an offensive manner, is sufficient

Reasoning

"To constitute an assault and battery, it is not necessary to touch the plaintiff's body or even his clothing; knocking or snatching anything from plaintiff's hand or touching anything connected with his person, when done in an offensive manner, is sufficient."

Separate Opinions

Notes

Contracts
Fujimoto v. Rio Grande Pickle Co
414 F.2d 648 (1969)

Keyword Subject

Breach of Contract

Facts

Plaintiffs worked at Defendant's pickle company. Defendant offered a contract to plaintiffs that added an annual bonus of 10% of the company's earnings. When plaintiffs asked for the contract in writing, one was prepared and sent to them. The contract provided no details on how to accept, so plaintiffs simply signed and kept the document. After plaintiffs left the company, they filed for breach of contract claiming that they had never been provided the bonuses. Defendant objected on the grounds that the contracts had never been returned to them, and therefore were not accepted.

Procedural History

Trial Court: In favor of Plaintiff (\$8,964.25 in damages)

Appeal: In favor of Plaintiff (Affirmed)

Issue

Can an offer, which by its terms does not specify the means by which they could be accepted, be accepted by a mode other than the return of the signed instruments?

Holding: Yes; Ruling affirmed

Principle

A contract may require the acceptor to relay that acceptance by any means; however, in the absence of such a requirement, an acceptors actions (i.e. continuing to work for the company and not mentioning the negotiations again) constitute acceptance.

Reasoning

Separate Opinions

Notes

Torts
Garratt v. Dailey
46 Wash.2d 197, 279 P.2d 1091 (1955)

Keyword Subject

Battery, Intent, Minor

Facts

The defendant (a 5 year old named Brian Dailey) was visiting the plaintiff Naomi Garratt (an adult) and the plaintiff's sister (Ruth Garratt) in the back yard of the plaintiff's home.

The plaintiff contends that the defendant deliberately pulled a lawn chair out from under her when she went to sit down. However, the trial court accepted the defendant's explanation that he had pulled the chair for himself to sit in and then, once he realized that the plaintiff was about to sit where the chair used to be, tried to push the chair back under the plaintiff. Unfortunately, the chair was too unwieldy for the defendant to properly move so the plaintiff fell and broke her hip.

Procedural History

Trial Court: In favor of Plaintiff (Damages set at \$11,000)

Appeal: In favor of Defendant (Remanded for clarification)

Trial Court: In favor of Plaintiff (Damages reset at \$11,000)

Issue

Can a defendant be held liable for battery in the absence of intent if the defendant does not have the knowledge that their action could or would lead to the injury?

Holding: No; Remanded for clarification

Principle

A person cannot be held liable for a tort if they do not have the knowledge that their actions could or would lead to an injury.

Reasoning

Separate Opinions

Notes

When the Defendant moved the chair in question, he did not have any wilful or unlawful purpose in doing so and did not intend to injure the plaintiff

Torts
Hardy v. LaBelle's Distributing Co
203 Mont. 263, 661, P.2d 35 (1983)

Keyword Subject

False Imprisonment

Facts

Plaintiff (Hardy) was hired by Defendant (LaBelle's Distributing Co) as a sales clerk in the jewelry department. On December 9, another employee thought they saw plaintiff steal a watch from a display and reported that suspicion to the assistant manager. The next day, the assistant manager told plaintiff that he wanted to give her a tour of the office, but then led her to a room with police officers and the loss prevention manager. They told her about the accusation, which she denied, and asked her to take a polygraph, which she accepted and passed. After the interaction, plaintiff filed a suit for false imprisonment based on her being brought to the room and expected to stay under false pretenses.

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Defendant

Issue

Does a situation in which someone feels compelled to stay somewhere constitute false imprisonment?

Holding: No; Ruling Affirmed

Principle

The two key elements of false imprisonment are the restraint of an individual against their will, by either acts or merely by words which they fear to disregard, and the unlawfulness of such restraint

Reasoning

Given that plaintiff admitted that she would have wanted to go clear up the accusations if she had known why she was being brought to the office, she cannot be said to have been restrained. Particularly because she was never told not to leave directly or otherwise.

Separate Opinions

Notes

Torts
Harris v. Jones
281 Md. 560, 380 A.2d 611 (1977)

Keyword Subject

Intentional Infliction of Emotional Distress

Facts

Plaintiff was an employee at GM under the supervision of Defendant. Plaintiff suffered from a condition that caused him to stutter and shake his head while trying to pronounce multi-syllable words. Over the course of five months, defendant approached at work and mocked plaintiff's stutter over 30 times. Defendant additionally reprimanded plaintiff two or three times a week, telling him to "not get nervous". Plaintiff requested a transfer multiple times but each time Defendant refused.

Procedural History

Trial Court: In favor of plaintiff (\$3,500 compensatory damages and \$15,000 punitive damages)

Special Appeal: In favor of defendant (Judgment Overruled)

Appeal: In favor of defendant (Judgment Affirmed)

Issue

Was the conduct intentional?

Was the conduct extreme and outrageous?

Was there a causal connection between the wrongful conduct and the emotional distress?

Was the emotional distress severe?

Holding: Yes on all counts except the last; Judgment Affirmed

Principle

Reasoning

Separate Opinions

Notes

Contracts
Hawkins v. McGee
84 N.H. 114, 146 A. 641 (N.H. 1929)

Keyword Subject

Negligence, Assumpsit, Offer, Warranty

Facts

A young man suffered an electrical burn on his hand that left him with scar tissue on his hand. He is solicited by a doctor who offers to perform a skin graft from his chest to his hand. He claimed that the man would recover from the surgery in 3-4 days and would be left with a "perfect hand".

The surgery was botched by the surgeon and resulted in an infection and hair grew from his hand.

The man's usage of the hand was impacted and he sued for breach of contract.

Procedural History

Trial Court (Jury Verdict): In favor of the Plaintiff (\$3,000)

Trial Court (Directed Verdict): Remit the damages in excess of (\$500)

Appeal: In favor of the Plaintiff [New trial ordered]

Settlement: (\$1,300)

Issue

Does the defendant's promise to give the plaintiff a "perfect hand" constitute a warranty for the surgery?

Is this impacted by the fact the doctor solicited the patient for the surgery?

Holding: Yes; New trial ordered

Principle

The verbal warranty provided by the doctor entitled the patient to expectancy damages

Reasoning

The previous instructions provided to the jury failed in both its points:

- The pain and suffering felt by the patient were irrelevant because they would have been experienced regardless of the results of the surgery
- The warranty provided by the doctor entitles the patient to more than just restitution damages

Separate Opinions

Notes

The writ (the lawsuit) included a count of negligence, and assumpsit.

Negligence - Malpractice (struck because the surgery was known to be experimental)

Assumpsit -

Contracts
Herrin v. Sutherland
74 Mont. 587, 241 P. 328 (1925)

Keyword Subject

Trespass to Land

Facts

Plaintiff alleged that Defendant, while hunting in an adjoining property, fired at water fowl that were flying over both properties. Plaintiff sued Defendant for nominal damages in trespassing in the space over Plaintiff's property

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Plaintiff

Issue**Holding:****Principle****Reasoning****Separate Opinions****Notes**

Contracts
Kolodziej v. Mason
774 F.3d 736 (2014)

Keyword Subject

Breach of Contract, Unilateral Contract

Facts

The defendant (James Mason) was a defense attorney defending a high-profile client accused of quadruple homicide. The case relied on the client having made it off of an airplane and arriving back at a specific hotel 28 minutes later. In expressing his incredulity at this possibility, the defendant said in an NBC interview that "if anyone could give him evidence that this was possible he would give them \$1,000,000". The plaintiff (Kolodziej), then a law student, saw this interview and decided to take it as a challenge. Based on the information he had about the case, he attempted the feat and then sent proof to defendant.

Procedural History

Trial Court: In favor of defendant

Appeal: In favor of defendant

Issue

Holding:

Principle

Spoken words, particularly when said hyperbolically or in such a way that a reasonable person would interpret them as such, cannot be enforced

Reasoning

Separate Opinions

Notes

Contracts
**Lefkowitz v. Greater Minneapolis Surplus
Store, Inc**
251 Minn. 188, 86 N.W.2d 689 (1957)

Keyword Subject

Breach of Contract, Offer

Facts

Defendant (Greater Minneapolis Surplus Store) posted an advertisement in the newspaper announcing a number of fur coats (valued either at \$100 or \$139.50) were to be sold for \$1 each to the first people to buy them. Plaintiff attempted to purchase the coats at each opportunity, being the first person at the store after both advertisements were made. However, the defendant denied the sale, citing that by "house rules" the offers were meant for women. Plaintiff sued for breach of contract.

Procedural History

Trial Court: In favor of plaintiff (\$138.50)

Appeal: In favor of plaintiff

Issue

Does a newspaper advertisement that indicates a well-defined sale constitute a unilateral contract?

Holding: Yes; Ruling affirmed

Principle

A newspaper or circular letter relating to the sale of articles may be construed by the court as constituting an offer, acceptance of which would complete the contract

Reasoning

The invocation of "house rules" does not override this offer because there was nowhere stated any ability to negotiate or modify the offer as presented.

Separate Opinions

Notes

Contracts
Loring v. City Of Boston
7 Metc. 409, 48 Mass. 409 (1844)

Keyword Subject

Unilateral Contract, Assumpsit, Revocation

Facts

In May of 1837, Defendant posted a number of advertisements in daily papers in Boston offering "\$500 reward... offered for the apprehension and conviction of any person who shall set fire to any building within the limits of the city." The next day, a signed version of the advertisements were published that doubled the reward. After another fire in 1841, Plaintiffs came to suspect Samuel Marriott for the arson and tracked Marriott to New York. After finding him and returning him to Boston, they found all the necessary witnesses and evidence and secured a conviction for the fire. However, when plaintiff requested payment they were denied.

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Defendant

Issue

Can an offer that is four years old be accepted because it was never formally withdrawn?

Holding: No; Judgment Affirmed

Principle

A unilateral contract is subject to the conditional requirements it lays out as well as a "reasonable time" in which to accept the offer

Reasoning

Separate Opinions

Notes

Contracts
Lucy v. Zehmer
196 Va. 493, 84 S.E.2d 516 (1954)

Keyword Subject

Mutual Assent

Facts

The plaintiffs W. O. Lucy and J. C. Lucy purchased a plot of land from defendants A. H. Zehmer and his wife in Dinwiddie county containing 471.6 acres of land for \$50,000.

The defendants drafted and signed the contract for the purchase stating "We hereby agree to sell to [plaintiff] the Ferguson Farm complete for \$50,000.00, title satisfactory to buyer."

The defendants claim that they thought the offer was made in jest and, having had a few drinks, composed and signed the contract. Further, they claim that the plaintiff was never delivered the contract and instead came by and picked it up and offered the defendant \$5 to bind the bargain. The defendant refused, at that point realizing for the first time that the offer was sincere. The plaintiff left the property insisting that the purchase had been completed.

Seven or eight years earlier, plaintiff had tried to purchase the farm from defendant for \$20,000 and defendant had verbally agreed, then backed out.

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Plaintiff (Reversed and remanded)

Issue

Can a written and signed contract be voided based on an internal and not obviously evident intention not to agree to the terms by one of the parties?

Holding: No; Reversed and remanded

Principle

An agreement between two persons is exclusively judged from the expressions of their intentions which are communicated between them.

Reasoning

An agreement or mutual assent is essential to a valid contract but the law imputes to a person the intention corresponding to the reasonable meaning of his words and acts. If his words and acts, judged by a reasonable standard, manifest an intention to agree, it is immaterial what may be the real but unexpressed state of his mind.

Separate Opinions

Notes

Torts
McGuire v. Almy
297 Mass. 323, 8 N.E.2d 760. (1937)

Keyword Subject

Battery, Intent

Facts

The plaintiff was employed to take care of the defendant as a registered nurse. The plaintiff was on "24 hour duty" watching the defendant. One day, the plaintiff heard commotion coming from the defendant's room and found that she had broken her furniture and was threatening anyone who would come into the room with the leg of a table. When the plaintiff entered the room to disarm the defendant and remove the debris, the defendant struck her in the head.

Procedural History

Issue

Can a person who is considered clinically insane be held liable for torts?

Holding: Yes; Judgement for the plaintiff

Principle

In so far as a particular intent would be liable to hold a normal person liable, an insane person, in order to be liable, must have been capable of entertaining the same intent as well as, in fact, entertaining it.

Reasoning

The intent of the defendant is crucial in determining liability of a tort, and therefore for a mentally ill defendant the question should be whether they have the capability to have intent as well as whether they actually have the intent.

Separate Opinions

Notes

At the time, it was a case without precedent as to whether a mentally ill person could be held liable for torts.

Contracts
Meyer v. Uber Technologies, Inc
868 F.3d 66 (2017)

Keyword Subject

Mutual Assent, Browsewrap

Facts

The plaintiff (Meyer) signed up for and used the defendant's (Uber's) app to request 10 rides. Afterwards, Meyer accused Uber of engaging in price fixing and prepared to try to take Uber to trial over the charge. Uber requested a motion to compel arbitration per their terms of service agreement. Meyer objected to this on the grounds that the terms of service were not made obvious enough when he was registering for the app. The terms of service were situated as "browsewrap" terms meaning that a user was given the option to view the terms, but were not forced to, and would "sign" the contract based on clicking "Register". The district court sustained this objection and denied the motion to compel arbitration.

Procedural History

Pre-trial: Uber motion to compel arbitration -> District court denies
Appeal: Uber appeals this denial -> Denial overruled (Vacated and remanded)

Issue

Does a "browsewrap" terms of service agreement provide users enough opportunity to read and understand the contractual nature of using a website or app?

Holding: Yes; Vacated and remanded

Principle

A reasonable and competent user should be able to understand the contractual and transactional nature of using websites with a "browsewrap" terms of service

Reasoning

Inasmuch as consumers are regularly and frequently confronted with non-negotiable contract terms, particularly when entering into transactions using the internet, the presentation of these terms at a place and time that the consumer will associate the initial purchase or enrollment, or the use of, the goods or services from which the recipient benefits at least indicates to the consumer that he or she is taking such goods or employing such services subject to additional terms and conditions that may one day affect him or her

Separate Opinions

Notes

Contracts
**Norcia v. Samsung Telecommunications
America, LLC**
845 F.3d 1279 (2017)

Keyword Subject

Implied Contract

Facts

Plaintiff purchased a phone manufactured by Defendant. Along with the phone was a brochure consisting of a "Standard Limited Warranty" and a EULA, within which was an arbitration clause. The clause stated that the purchaser had the right to opt out of the arbitration clause by providing notice to Defendant within 30 days of the purchase. However, when plaintiff purchased the phone, they carried the phone out and left the brochure and box.

Plaintiff later filed a class action complaint against Defendant, claiming that the specs of the phone had been misrepresented in its advertising. Defendant replied by moving to compel arbitration.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Plaintiff (Motion Denied)

Issue

Does defendant's inaction constitute agreement to the arbitration clause?

Holding: No; Motion Denied

Principle

An offerer must provide some means of manifesting an offeree's intent to use silence or inaction as means of accepting an agreement or be able to prove such silence or inaction bestowed a benefit on the offeree

Reasoning

Defendant made no indication that there was any expectation for plaintiff to agree to the terms as laid out in the brochure. Further, no benefits would be gained or lost by opting out of arbitration. Therefore, inaction on the part of the plaintiff cannot be judged as agreement to the terms.

Separate Opinions

Notes

Torts
Parvi v. City of Kingston
41 N.Y.2d 553, 362 N.E.2d 960, 394 N.Y.S.2d 161 (1977)

Keyword Subject

False Imprisonment

Facts

The defendant (The City of Kingston Police) responded to a complaint in which two brothers were fighting and plaintiff (Parvi) was trying to calm them down. According to the defendants, all three were showing "the effects of alcohol." When plaintiff told the police he didn't have anywhere to go, they took him outside the city limits and left him there to "dry out." Plaintiff then wandered into traffic and was hit by a car.

Procedural History

Trial Court: In favor of defendant

Appeal: In favor of defendant

Supreme Court: In favor of plaintiff

Issue

If the plaintiff was too drunk to have a recollection of their confinement, does that undermine their cognisense of their captivity?

Holding: No; Reversed and remanded

Principle

there is no liability for intentionally confining another unless the person physically restrained knows of the confinement or is harmed by it

Reasoning

Separate Opinions

Notes

the plaintiff must show that:

- (1) the defendant intended to confine him,
- (2) the plaintiff was conscious of the confinement,
- (3) the plaintiff did not consent to the confinement and
- (4) the confinement was not otherwise privileged

Contracts
Petterson v. Pattberg
248 N.Y. 86 161 N.E. 428 (1928)

Keyword Subject

Unilateral Contract, Revocation

Facts

The plaintiff (Petterson) was the owner of 5301 Sixth Avenue in Brooklyn. Defendant (Pattberg) was the owner of a bond executed by Plaintiff, secured by the mortgage on Plaintiff's property. Plaintiff sought to pay off \$780 of his loan in cash and approached Defendant with the offer. Defendant agreed, offering the unilateral contract in a letter. However, when Plaintiff approached Defendant with the cash, Defendant rebuffed him, informing him that he had sold Plaintiff's debt and so that deal was off the table.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Defendant

Issue

Can an offerer revoke an offer to accept payment so long as that payment hasn't yet been tendered?

Holding: Yes; Ruling Reversed

Principle

Such a contract can be revoked up until the point where the offerer receives and accepts their payment

Reasoning

Separate Opinions

Lehman, J: Defendant's letter constituted a promise to accept payment if Plaintiff comes and offers it. The distinction between "offering payment" and "tendering payment" in this situation can only confuse the results. If the offer was to accept payment, but allows the offerer to deny that the promise is binding until after they have accepted it then the offer doesn't mean anything.

Notes

Contracts
Princess Cruise Lines v. GE
22 Ill.143 F.3d 828 (1998)

Keyword Subject

Warranty, Agreement

Facts

Plaintiff hired Defendant to do service repairs on their boat. Plaintiff sent a contract to Defendant that quoted the price for \$260,000 with a warranty. Defendant responded by offering to do the work for \$231,925 with no warranty. Several days later, defendant sent an acceptance of the offer they had previously and there was no reply. However, Plaintiff did bring the boat to the service area and service commenced. Due to faulty repair to the rotor, Plaintiff had to cancel a cruise and Plaintiff sued.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Defendant

Issue

Does the UCC apply to the current contract?

Holding: No; Reversed and Remanded

Principle

A contract that primarily revolves around services must utilize common law rather than the UCC

Reasoning

Separate Opinions

Notes

Predominant Purpose Test:

Was the predominant purpose of the contract to do a service or order a good? (i.e. if the contract was to do services and buying goods is just part of that then the services are predominant. Otherwise, if the purchase of the goods was the primary purpose and services were incidental then the purchase would be primary)

Torts
Ranson v. Kitner
31 Ill.App. 241. (1889)

Keyword Subject

Mistake

Facts

The defendant was hunting for wolves and saw plaintiff's dog. The dog resembled a wolf and the defendant killed it as such.

Procedural History

Trial Court: In favor of Plaintiff

Appeal: In favor of Plaintiff

Issue

Is the defendant liable for damages caused by a mistake that was made in good faith?

Holding: Yes; Judgment Affirmed

Principle

A defendant holds liability for damage that results from a mistake

Reasoning

The judge intentionally uses the term "mistake" to indicate that the damages, though made in good faith, were intentional and therefore there is liability

Separate Opinions

Notes

Contracts
Rego v. Decker
482 P.2d 834 (1971)

Keyword Subject

Breach of Contract, Indefiniteness, Rent

Facts

Appellant (Rego) leased his land and car service station to appellee (Decker) for one year in 1966. The terms of the lease laid out the option for a lease renewal for an additional 4 years given a set of additional terms. These terms included profit sharing from the appellee to the appellant and stated that the appellant would get the ground paved. Appellant never got the land paved and appellee tried to exercise his purchase option. Appellant refused and appellee sued.

Procedural History

Trial Court: In favor of Plaintiff (Specific Performance and \$15,000 for paving)
Appeal: Split decision (Specific Performance and remand for security on same)

Issue

Holding:

Principle

Reasoning

Separate Opinions

Notes

Contracts
Schnell v. Nell
17 Ind. 29 (1861)

Keyword Subject

Breach of Contract, Consideration

Facts

Plaintiff's (Schnell) wife made an inoperative will expressing her desire that the three Defendants each receive \$200 upon her death. The will was inoperative because she had no property of her own. Plaintiff sought to respect her wishes by entering a separate contract with the Defendants in which he promised to pay them the \$200 over 3 years in even disbursements. Plaintiff, however, changed his mind and refused to send the money.

Procedural History

Trial Court: In favor of (?)

Appeal: In favor of Defendant

Supreme: In favor of Plaintiff (Reversed and Remanded)

Issue

Was the contract based on an inoperative will express consideration sufficient to make it enforceable?

Holding: No; Reversed and Remanded

Principle

Consideration of 1c does not count as consideration when there is a direct money exchange. Consideration needs to be more intangible than that (but less intangible than "the love and wishes of his wife")

Reasoning

Separate Opinions

Notes

Torts
Slocum v. Food Fair Stores of Florida
100 So.2d 396 (1958)

Keyword Subject

Intentional Infliction of Emotional Distress

Facts

While Plaintiff was shopping at Defendant's store, Plaintiff alleges that she was insulted by one of defendant's employees. This insult "

Procedural History

Trial Court: In favor of Defendant (Motion to Dismiss based on lack of Cause of Action Granted)

Appeal: In favor of Defendant (Motion to Dismiss Affirmed)

Issue

Did the insulting language that plaintiff claims caused her injury constitute an actionable invasion of a legally protected right?

Holding: No; Motion to Dismiss Affirmed**Principle**

A distinction must be drawn between "conduct likely to cause mere 'emotional distress' and that causing 'severe emotional distress'"

Reasoning**Separate Opinions****Notes**

It is for the court to determine, in the first instance, whether the conduct would reasonably be regarded as outrageous. Where reasonable men may differ, it is left to the jury as a question of fact.

Torts
Spano v. Perini Corp
304 N.Y.S.2d 15 (1969)

Keyword Subject

Negligence, Property Damage

Facts

The plaintiff Spano owned a garage in Brooklyn which was wrecked by a blast of dynamite set off by Perini Corp.

The blast (totaling 194 sticks of dynamite) was set off in a construction site 125 feet from the garage and though it did not result in debris that wrecked plaintiff's garage, the shockwave of the explosion did shake his garage to the ground.

Procedural History

Trial Court: In favor of Defendant

Appeals: In favor of Plaintiff

Issue

Can someone be held liable for damages caused by blasting that were not the direct result of "physical trespass" or negligence?

Holding: Yes; New Trial

Principle

A blaster holds strict liability for damages resulting from blasting, regardless of whether there was physical trespass or negligence

Reasoning

It's unreasonable to conclude that a company doing dynamite blasting is not liable for damages to adjoining properties unless there is visible, physical debris that entered the property. Such a rule is scientifically unmoored because a blast-wave from an explosion has just as much ability to cause injury. Further, proving negligence is unnecessary as if a shockwave from a construction yard explosion damages nearby property, the blasting was definitionally negligent.

Separate Opinions

Notes

Torts
State Rubbish Collectors Ass'n v. Siliznoff
38 Cal.2d 330, 240 P.2d 282 (1952)

Keyword Subject

Intentional Infliction of Emotional Distress, Assault

Facts

Defendant operated trash collection for Acme Brewing Company and came into conflict with Plaintiff, who considered this collection to be encroaching on their territory. A member of Plaintiff told defendant "We will give you till tonight to get down to the board meeting and make some kind of arrangements or agreements about Acme Brewery, or otherwise we are going to beat you up". Defendant did go to the meeting and made an agreement, but backed out claiming to have been compelled under duress.

Procedural History

Trial Court: In favor of Defendant on claim and counterclaim (\$1,250 general and special damages and \$4,000 punitive damages)

Appeal: In favor of Defendant (Affirmed)

Issue

Is the Defendant owed recovery for the IIED he suffered, even in the absence of accompanying physical injury?

Holding: Yes; Ruling Affirmed

Principle

In cases where mental suffering constitutes a major element of damages it is anomalous to deny recovery because the defendant's intentional misconduct fell short of producing some physical injury;.

Reasoning

Separate Opinions

Notes

Contracts
Stepp v. Freeman
119 Ohio App. 3d 68, 694 N.E.2d 792 (1997)

Keyword Subject

Breach of Contract, Implied-in-fact

Facts

The defendant (Freeman) ran a lottery group that would, when the lottery reached over \$8 Million, purchase a total of 2 tickets each for its 20 members. The membership of this group was capped at 20 people, with a waiting list for when a member would leave the group. Leaving the group was also a semi-formalized process in which defendant would consult any member that hadn't paid in and was interested in leaving before they were removed from the pool.

The plaintiff (Stepp) was a longstanding member of this lottery pool. He also had a role in the group of collecting the tickets after they had been purchased and photocopying them to distribute to each of the group's members.

On Wednesday, March 3, 1993, the group won a \$8 Million jackpot. Prior, defendant and plaintiff got into a work-related dispute that led defendant to abstain from telling plaintiff that the pool was purchasing tickets or collect money from him; telling another member "Stepp hasn't come around". When the group won, they split the money 19 ways and plaintiff sued for breach of contract.

Procedural History

Trial Court: In favor of plaintiff (Objections raised by defendant and overruled)

Appeal: In favor of plaintiff

Issue

Can an unstated, implied understanding between parties constitute an implied-by-facts contract and does that entitle a party to damages on breach?

Holding: Yes; Judgement Affirmed

Principle

The surrounding context around an implied and unstated agreement can give it the weight of a legally binding contract

Reasoning

Separate Opinions

Notes

Torts
Talmage v. Smith
101 Mich. 370, 59 N.W. 656. (1894)

Keyword Subject

Tresspass (common law), Intent

Facts

The defendant (Charles Smith) had on his property multiple sheds. One day he came out and saw a number of boys on top of his sheds and ordered them to get down. After they had, he discovered two more boys on the roof of another one of his sheds, though he claims he only saw one of them.

The defendant picked up a stick and threw it at one of the boys. The stick missed and hit the plaintiff in the eye, resulting in the plaintiff being blinded.

Procedural History

Trial Court: In favor of plaintiff

Appeal: In favor of plaintiff

Issue

Was the intent of the defendant to hit somebody with the stick, and was that excessive force given the facts?

Holding: Yes; Judgment Affirmed

Principle

The fact that an injury from a tort resulted to someone other than the intended target does not relieve the defendant of liability

Reasoning

Separate Opinions

Notes

Torts
Taylor v. Vallelunga
171 Cal.App.2d 107, 339 P.2d 910 (1959)

Keyword Subject

Battery, Intentional Infliction of Emotional Distress

Facts

In December of 1956, Plaintiff's father was beaten by Defendant and sued Defendant for battery. However, Plaintiff's daughter was present and alleged that the events caused her "severe fright and emotional distress."

Procedural History

Trial Court: In favor of Defendant

Appeal: In favor of Defendant

Issue

Can someone claim IIED for events perpetrated by someone who didn't know that claimant was there?

Holding: No; Judgement Affirmed

Principle

A claimant can only claim IIED if the perpetrator of the accused tort knew claimant was there

Reasoning

Separate Opinions

Notes

Contracts
**Volker Court, LLC v. Santa Fe Apartments,
LCC**
130 S.W.3d 607 (2004)

Keyword Subject

Breach of Contract, Offer

Facts

In September of 2001, plaintiff (Lambi) began expressing interest in an apartment complex owned by defendants (Atkins brothers). One of the brothers responded to the offer expressing interest, but rejecting the terms of the offer on the basis that the price was too low. After subsequent communications, the brother replied to plaintiff laying out two possible offers that could be acceptable stating that the other brother was not interested and the included offers would be acceptable if he was able to get them in writing and present them to him.

Plaintiff took these suggestions as official offers and replied to the letter stating that he accepted and attempting to move forwards with the sale. The defendants rejected this, denying that any official offer had been made. Plaintiff filed a lawsuit against defendants for breach of contract.

Procedural History

Trial Court: In favor of Defendant (Summary Judgment)

Appeal: In favor of Defendant

Issue

Do suggestions for an acceptable offer constitute an offer?

Is a stated number binding when one party indicates that others need to be consulted?

Holding: No; Affirmed

Principle

A manifestation of willingness to enter into a bargain is not an offer if the person to whom it is addressed knows or has reason to know that the person making it does not intend to conclude a bargain until he has made further manifestation of assent.

Reasoning

Defendant was clear multiple times throughout the letters that his brother would have to be consulted and agree to any terms of an offer before it could be fully made. The inclusion of this conditional occludes the possibility that the offer could be binding.

Separate Opinions

Notes

Torts
Wagner v. State
2005 UT 54, 122 P.3d 599 (2005)

Keyword Subject

Negligence, Battery

Facts

The plaintiff (Mrs. Wagner) was standing in line at K-Mart when Mr. Giese, a mentally disabled man who was on a supervised visit to the store as part of his treatment, grabbed her by the head and threw her to the ground.

Procedural History

Trial Court: In favor of Defendant

Appeals: In favor of Defendant

Issue

Does battery require that the defendant intended to harm or offensively contact (dual intent) beyond simply intent to make contact (single intent)?

Holding: No; Previous Ruling Affirmed

Principle

A defendant does not need to intend an action to be harmful in order to be found liable for battery; instead simply requiring an intent to touch the plaintiff

Reasoning

The defendant would not be capable of having an intention of harming the plaintiff, yet the simple act of intending to come into contact with the defendant results in liability

Separate Opinions

Notes

Contracts
Walker v. Keith
382 S.W.2d 198 (1964)

Keyword Subject

Indefiniteness, Rent

Facts

Plaintiff (Keith) was a lessee, renting a property from defendant (Walker) for \$100 per month. The contract was formed with a renewal option that stated that the new rental price will be agreed upon by both parties and will be based on "comparative business conditions" between the time that the last price was reached and the new renewal period. When the renewal period came about, the parties were not able to reach an agreement and litigation ensued.

Procedural History

Trial Court: In favor of the Plaintiff (New rent set at \$125)

Appeal: In favor of Defendant (Reversed)

Issue

If a contract does not enclose the price or a method by which the price can be determined then can it be determined by the court?

Holding: No; Reversed

Principle

In the case of indefiniteness on price of a contract, the contract is unenforceable.

Reasoning

Separate Opinions

Notes

Torts
Wallace v. Rosen
765 N.E.2d 192 (2002)

Keyword Subject

Negligence, Battery

Facts

The defendant (Rosen), a teacher at Northwest High School in Indianapolis, was responding to a fire drill that was happening when classes were in session. While escorting students out of the building in accordance with the fire drill procedure, defendant noticed several people at the top of a flight of stairs talking with one another. He walked up to them and called on them to "move it" and, when they did not hear him, touched plaintiff on the back to get their attention. At this point, plaintiff slipped and fell down the stairs and accused defendant of battery for "pushing" her.

Procedural History

Trial Court: In favor of defendant

Appeal: In favor of defendant (Affirmed)

Issue

Did the trial judge err in instructing the jury that "battery is the knowing or intentional touching of one person by another in a rude, insolent, or angry manner" and that "a battery may be recklessly committed where one acts in reckless disregard of consequences?"

Holding: No; Judgement affirmed

Principle

Absent expression to the contrary, consent is assumed to all those ordinary contacts which are customary and reasonably necessary to the common intercourse of life

Reasoning

The "mere knowledge and appreciation of a risk—something short of substantial certainty—is not intent. The defendant who acts in the belief or consciousness that the act is causing an appreciable risk of harm to another may be negligent, and if the risk is great the conduct may be characterized as reckless or wanton, but it is not an intentional wrong."

Separate Opinions

Notes

Torts
Western Union Telegraph Co v. Hill
2005 UT 54, 122 P.3d 599 (2005)

Keyword Subject

Negligence, Battery

Facts

The plaintiff (Mrs. Wagner) was standing in line at K-Mart when Mr. Giese, a mentally disabled man who was on a supervised visit to the store as part of his treatment, grabbed her by the head and threw her to the ground.

Procedural History

Trial Court: In favor of Defendant

Appeals: In favor of Defendant

Issue

Does battery require that the defendant intended to harm or offensively contact (dual intent) beyond simply intent to make contact (single intent)?

Holding: No; Previous Ruling Affirmed

Principle

A defendant does not need to intend an action to be harmful in order to be found liable for battery; instead simply requiring an intent to touch the plaintiff

Reasoning

The defendant would not be capable of having an intention of harming the plaintiff, yet the simple act of intending to come into contact with the plaintiff results in liability

Separate Opinions

Notes